

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 888

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO INFORMATION TECHNOLOGY; AMENDING SECTION 67-827A, IDAHO CODE,
TO REVISE PROVISIONS REGARDING THE OFFICE OF INFORMATION TECHNOLOGY
SERVICES AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY
AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-827A, Idaho Code, be, and the same is hereby
amended to read as follows:

67-827A. POWERS AND DUTIES. (1) The office of information technology
services is hereby authorized and directed:

~~(1) (a) (i) To control and approve the acquisition, purchase, and instal-
lation of all information technology and telecommunications equipment
and facilities for all departments and institutions of state gov-
ernment, except as provided in subparagraphs (ii), (iii) and (iv)~~
paragraphs (b), (c), and (d) of this paragraph subsection;

~~(ii) (b) To coordinate the acquisition, purchase, and installation of
all information technology and telecommunications equipment and facil-
ities for the institutions of higher education and the elected officers
in the executive branch;~~

~~(iii) (c) To coordinate the acquisition, purchase, and installation of
all information technology and telecommunications equipment and facil-
ities for the legislative and judicial branches;~~

~~(iv) (d) Provided however, that the acquisition, purchase, and in-
stallation of all public safety and microwave equipment shall be under
the control of the military division. The military division is autho-
rized to charge and receive payment for actual and necessary expenses
incurred in providing services to any unit of state government under the
provisions of this subparagraph.~~

~~(b) (2) (a) In approving or directing the acquisition, purchase, or in-
stallation of information technology or telecommunications equipment
or facilities, the office shall first consult with and consider the
recommendations and advice of the directors or executive heads of the
various departments or institutions. For each purchase of information
technology or telecommunications equipment or facilities, the office
shall conduct a technical and financial analysis that best meets the
needs of the departments and institutions of state government. The of-
fice, in its discretion, may use a third-party broker for the technical
and financial analysis as long as:~~

(i) The third-party broker has a fiduciary duty to the office for
the analysis being performed;

(ii) The third-party broker is not also a direct vendor of the in-
formation technology being procured;

(iii) The third-party broker does not accept gifts, gratuities, or favors from vendors and is prohibited from unauthorized ex parte communications during the analysis;

(iv) The analysis being conducted is neutral, transparent, and documented; and

(v) Fees are not charged to the office, except that the third-party broker may charge a reasonable commission to the vendors engaged by the office for its services.

(b) The office, in its discretion, may also use and enter into a memorandum of understanding with the division of purchasing in the department of administration for procurements. Except when using the division of purchasing for procurements, the office's purchase of information technology and telecommunications equipment and facilities is exempt from the provisions of chapter 92, title 67, Idaho Code. Any procurements less than fifteen thousand dollars (\$15,000) shall be exempt from the provisions of this section and may be purchased directly by the departments and institutions of state government. Any acquisition, purchase, or installation of any information technology or telecommunications equipment or facilities that is contrary to the office's direction or is not in harmony with the state's overall plan for telecommunications and information sharing shall be reported in writing to the governor and the legislature.

~~(2)~~ (3) To provide a system of information technology and telecommunications for all departments and institutions of state government. Funds received pursuant to this subsection shall be appropriated for payment of any charges related to information technology and telecommunications and telephone charges incurred by the various agencies and institutions of state government.

~~(3)~~ (4) To provide a means whereby political subdivisions of the state may use the state telecommunications system, on such terms and under such conditions as the office of information technology services may establish.

~~(4)~~ (5) To accept federal funds granted by congress or by executive order for all or any of the purposes of this chapter, as well as gifts and donations from individuals and private organizations or foundations.

~~(5)~~ (6) To oversee implementation of cybersecurity policies that foster risk and cybersecurity management telecommunications and decision-making with both internal and external organizational stakeholders.

~~(6)~~ (7) To consult with and direct state agencies and officials regarding information security needs.

~~(7)~~ (8) To direct state agencies and officials on penetration tests and vulnerability scans of state technology systems in order to identify steps to mitigate identified risks.

~~(8)~~ (9) To direct state agencies and officials to ensure that state agencies implement mandatory education and training of state employees and provide guidance on appropriate levels of training for various classifications of state employees.

~~(9)~~ (10) To direct appropriate state agencies to create, coordinate, publish, routinely update and market a statewide cybersecurity website as an information repository for intelligence-sharing and cybersecurity best practices.

1 ~~(10)~~ (11) To ensure that all state agencies implement and maintain cy-
 2 bersecurity best practices.

3 ~~(11)~~ (12) To require all state agencies to implement and use multifac-
 4 tor identification to access information technology devices or services,
 5 including but not limited to local and remote network access to any email
 6 accounts, cloud storage accounts, web applications, networks, databases, or
 7 servers.

8 ~~(12)~~ (13) To coordinate public and private entities to develop, create
 9 and promote statewide public outreach efforts to protect personal informa-
 10 tion and sensitive data from cyber threats.

11 ~~(11)~~ (14) (a) To obtain a criminal history check on prospective employ-
 12 ees and contractors with the Idaho office of information technology
 13 services who provide information technology (IT) services to external
 14 state agency customers and who work in one (1) or more of the following
 15 disciplines:

- 16 (i) IT network engineering;
- 17 (ii) IT operations and support;
- 18 (iii) IT software engineering;
- 19 (iv) Geographic information systems;
- 20 (v) IT information management;
- 21 (vi) IT database administration;
- 22 (vii) IT systems and infrastructure engineering;
- 23 (viii) IT information security engineering;
- 24 (ix) IT architecture;
- 25 (x) IT management;
- 26 (xi) Remote sensing analysis; and
- 27 (xii) Data science.

28 (b) The criminal history check done pursuant to paragraph (a) of this
 29 subsection shall be based on a completed ten (10) finger fingerprint
 30 card or scan and shall include, at a minimum, information from the Idaho
 31 bureau of criminal identification database and the federal bureau of
 32 investigation's criminal history database.

33 (c) For the purposes of this section, "information technology" shall
 34 have the same meaning as provided for in section 67-831, Idaho Code.

35 ~~(12)(13)~~ (15) To promulgate and adopt reasonable rules, subject to leg-
 36 islative approval, for effecting the purposes of this act pursuant to the
 37 provisions of chapter 52, title 67, Idaho Code.

38 SECTION 2. An emergency existing therefor, which emergency is hereby
 39 declared to exist, this act shall be in full force and effect on and after
 40 July 1, 2026.